MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Use of Privately Owned Vehicles

The parties agree that the following represents the policy of the U.S. Postal Service and the American Postal Workers Union concerning the furnishing of privately owned vehicles (POV) by employees of the crafts represented by the APWU: No craft employee represented by the APWU may be coerced into furnishing a vehicle or carrying passengers without the employee's consent. The use of a personal vehicle is the decision of the employee and it is not the intent of the parties to discourage such use of personal vehicles when transportation is needed from one postal facility to another or in the completion of the employee's assignment. When an employee begins his/her work day at one postal unit and is provided transportation to another unit to complete his/her tour of duty, that employee will be provided transportation back to the unit where his/her tour began if transportation is needed. If the employee ends tour at the new location the return trip will not be on the clock but transportation will be provided promptly by management upon request.

Date**:** July 21, 1987

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MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Clerk Craft Jobs

The United States Postal Service (USPS) agrees to create certain duty assignments in the Clerk Craft of the American Postal Workers Union (APWU), AFL-CIO in accordance with the following provisions:

1) Corporate Call Center

All Corporate Call Center locations shall be staffed by Clerk Craft employees no later than two (2) years from the ratification of the 2010 National Agreement. The Employer shall staff Call Center locations with no fewer than a total of 1,100 Clerk Craft duty assignments during the term of the **2018** Agreement. These duty assignments will be filled by a mix of 70% career and 30% rehabilitation status employees. Each call center location shall become part of the bid cluster for the nearest postal installation. The appropriate administrative process will be followed by the Employer during the transition.

2) Mail Processing/Customer Service

The intent behind the creation of the Lead Processing Clerk and the Lead Sales and Services Associate is to provide oversight, direction and support, in the absence of supervisory presence to bargaining unit employees in both mail processing and retail operations. Lead Clerk positions will be created at one (1) level above other employees in the group.

The Employer will fill duty assignments of a Lead Clerk in any facilities where clerks work without direct supervision and in facilities that have a minimum complement of five (5) clerks. Lead Clerk assignments shall include duties in both the retail and mail processing operations in post offices. Lead Clerk assignments will also be filled in facilities with only a retail operation.

A) Lead Clerk-Mail Processing – Responsibilities include, but are not limited to, resolving problems that may occur during tour operations and determining when a supervisor should be involved; work as a working leader of mail processing employees in a mail processing activity; maintaining records related to mail on hand and mail processed; maintaining a working knowledge of regulations, policies and procedures related to mail processing activities.

B) Lead Clerk-Customer Service – Responsibilities include, but are not limited to, maintaining a working knowledge of regulations, policies and procedures related to all phases of retail services and post office mail processing operations; acting alone or as a working leader to retail and mail processing employees; providing technical guidance to retail clerks in addition to communicating regulations, policies and procedures to those employees; performing administrative duties in both retail and mail processing operations; and ensuring that all work is performed efficiently.

C) The ratio of Lead Clerk assignments in the Clerk Craft complement in a facility shall be:

5 to 49 clerks - 1

50 to 99 clerks - 2

100 - 199 clerks - 3

200 - 499 clerks - 5

500 or more clerks - 5 plus 1 for each additional 100 clerks

Lead Clerk assignments may also be established in retail only offices or stations. Existing LSSAs, Window Service Technicians and other existing Clerk Craft positions of a similar nature identified by the parties shall be grandfathered into the new position of Lead Clerk.

D) In order to ensure the orderly establishment of the new Lead Clerk position, the Employer will have one (1) year from the signing of this Memorandum to develop the Lead Clerk senior qualified job descriptions and any training program that may be necessary, post and fill the positions and complete any other relevant activities. During year 2 of this Agreement the parties will jointly agree upon a procedure to be used to review the effectiveness of the newly established position. At the end of year 2, the parties will meet to apply the review

procedure with the expectation that the number of work hours utilized for 204(b) activities will be reduced or eliminated in those work units with a Lead Clerk position. Additional reviews will be conducted by the parties at the end of years 3 and 4 of this Agreement. Not later than June 1, 2012, the Employer will eliminate the usage of 204(b)s except in the absence or vacancy of a supervisor for 14 days or more. The usage of a 204(b) in this exception is normally limited to no more than 90 days.

3) Audit of EAS Jobs

The Employer shall return duties and responsibilities from Executive and Administrative Schedule (EAS) positions within mail processing and customer service to the APWU bargaining unit based upon an audit conducted by the Employer in accordance with the principles of the National Labor Relations Act (NRLA) and Lockheed Martin 331 NLRB 1407 (2000); provided, however, that if particular duties and responsibilities may have evolved from either an APWU craft position or an EAS position, the Employer will apply a presumption that the duties will be returned to the APWU craft.

The Employer will develop career position descriptions, or assign work to current positions, based on the bargaining unit duties derived from the audit of these positions.

At the request of the Union, the Employer shall engage in the above audit process with respect to any EAS position which the Union believes contain bargaining unit work.

The parties shall meet within 30 days of the execution of this Agreement to review the audits and career position descriptions.

In addition, the parties agree to jointly request that the Court of Appeals for the D.C. Circuit to remand the appeal in Docket #10-5249 (D.C. Circuit) to the district court and to file a joint motion to vacate the judgment and dismiss the action as moot by reason of settlement. At the

completion of the process described above, the Union will withdraw any and all pending grievances associated with the duties and responsibilities of the positions addressed in this Section.

4) Bargaining Unit Positions

It is understood and agreed that the Employer will provide 800 administrative and technical jobs to the APWU bargaining unit in addition to those provided in Paragraph 1 and 2 above. Jobs provided pursuant to Paragraph 3 above will count toward the number of jobs provided pursuant to this paragraph. It is also understood and agreed that this MOU is nonprecedential.

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MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

CLERK CRAFT

Re: Relief and Pool

Relief and pool assignments, sometimes called "flexible relief work cycle" assignments are utilized to cover absences and vacancies of employees holding regular bid assignments and other situations where the assignment is uncovered.

Such relief and pool assignments also enable management to accommodate employee requests for unscheduled leave. It is recognized that the concept of a relief or pool assignment necessarily entails a degree of uncertainty in scheduling employees filling such assignments.

In order to minimize this uncertainty, the parties have agreed to the following principles to be applied to the establishment and operation of relief and pool assignments.

1. The Postal Service may establish new or additional relief and pool assignments in any installation. The Postal Service shall consult with the Union before management